

HOW TO ASK FOR A CERTIFICATE OF GOOD CONDUCT

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NOTE: If there are any words or terms used in these instructions that you do not understand, please visit Illinois Legal Aid Online at illinoislegalaid.org/lexicon/glossary. For more information about going to court including how to fill out and file forms, call or text Illinois Court Help at 833-411-1121 or go to ilcourthelp.gov.

What is a Certificate of Good Conduct?

A *Certificate of Good Conduct* is a court order stating that an individual has been rehabilitated from past criminal conduct.

Why would someone seek a Certificate of Good Conduct?

A *Certificate of Good Conduct* may help you overcome barriers that your criminal record is causing (such as difficulties with getting a job or finding housing). It may also remove barriers to employment under Illinois laws. Go to this website for a list of barriers to employment in Illinois: <https://niccc.csqjusticecenter.org/>.

Who can ask the court for a Certificate of Good Conduct?

You can ask for a *Certificate* so long as you have not been convicted of any of the following:

- Aggravated driving under the influence
- Aggravated domestic battery
- Arson, aggravated arson
- Kidnapping, aggravated kidnapping
- Convictions resulting in registration under (1) Sex Offender Registration Act, (2) Arsonist Registration Act, or (3) Murder and Violent Offender Against Youth Registration Act
- Federal or out of state convictions unless you are removing a specific legal restriction, for example, the Illinois School Code bars you from working with that conviction in schools
- *Certificate of Good Conduct* cannot be issued for the following types of cases:
 - Juvenile cases
 - Civil cases
 - Minor traffic offenses

When Can I Apply?

If you were convicted of a misdemeanor, you must wait at least 1 year after your sentence ended. If you were convicted of a felony, you must wait at least 2 years after your sentence ended. Your sentence ends on the date of the payment of any fine imposed or on the date of release from custody by parole, mandatory supervised release, or commutation or termination of sentence. [730 ILCS 5/5-5.5-30\(c\)](#).

NOTE: If you have a pending case, that case may impact a judge's decision on your *Request*.

What forms do I need to fill out to seek a Certificate of Good Conduct?

- *Request for Certificate of Good Conduct*
- *Notice of Court Date for Request for Certificate of Good Conduct*
- *Certificate of Good Conduct (Order Granting Request)*
- *Order Denying Request for Certificate of Good Conduct*

The email address (if you have one) and mailing address you put on the *Request for Certificate of Good Conduct* is where important legal documents will be sent to you. You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

Where can I find the forms I need?

You can find forms at: illinoiscourts.gov/documents-and-forms/approved-forms

What costs will I need to pay to file my forms?

There is a fee to file your *Request for Certificate of Good Conduct*. The Circuit Clerk will let you know the amount of the fee.

STEP 1: GET COPIES OF YOUR CRIMINAL RECORDS

Why do I need copies of my criminal records?

Criminal records list the offenses you were arrested for, the offenses you were charged with, and the outcome of the cases, including any sentences you received. Your criminal records will be considered by the court in evaluating your *Request for Certificate of Good Conduct*.

What are the different types of criminal records?

- Court Disposition: the final judgment or outcome in a court case. There are no court dispositions for arrests or charges that did not lead to a court case.
- Chicago RAP Sheet (Record of Arrests and Prosecutions): list of all arrests, charges, and court case outcomes that happened in Chicago.
- Illinois State Police Statewide Criminal History Transcript: list of all arrests and convictions that happened in Illinois.

How do I get copies of my criminal records?

- **Get information from the Illinois State Police.** You are allowed to access your entire criminal history information from the Illinois State Police. Although not

required, it is the best available source for your statewide criminal record. Please note, there might be discrepancies or missing information. You can get a "Statewide Criminal History Transcript" in 3 ways:

- **Directly from the Illinois State Police:**
Illinois State Police, Bureau of Identification
260 North Chicago Street, Joliet, Illinois 60432
(815) 740-5160
<https://isp.illinois.gov/BureauOfIdentification/CriminalHistory>
- **Every law enforcement agency** is allowed to provide you this information. Check with your local law enforcement agency to find out costs and times for fingerprinting.
- You can also go to any **licensed LiveScan vendor** to get your Transcript. Find a LiveScan vendor at:
idfpr.com/LicenseLookUp/fingerprintlist.asp.
- **Get information from the Circuit Clerk.** Many court records are available online. Other counties, like Cook County, do not provide online access to criminal records. In this case, go to the Circuit Clerk's Office in the county where your case was filed. Ask the Circuit Clerk for copies of your court dispositions or use the public computer at the courthouse to look them up and print them out. There may be a fee to print out your court dispositions, but you can look at them on the computer and write down the information for free. Find your Circuit Clerk's website at:
illinoiscourts.gov/courts/circuit-court/circuit-court-clerks/.
- **Get information from the Chicago Police Department.** Order a RAP sheet from the Chicago Police Department if you were arrested in Chicago. There may be a waiting period before you get your RAP sheet. There will be a fee.
 - You must go to the Chicago Police Department to get your Chicago RAP sheet:
Chicago Police Headquarters
3510 S. Michigan Ave., Chicago, IL
(312) 745-5508
 - You should also request a copy of your Illinois State Police Statewide Criminal History Transcript. The Chicago Police will provide your state record for no additional cost.
- **If you are requesting a Certificate for an out of state or federal conviction** because you need to remove a specific legal restriction (for example, you have a conviction in Iowa that legally bars you from working as a teacher in Illinois), you must get your certified court disposition or a similar document from the state where you were convicted. If you were convicted of a federal crime after November 1, 2004, you can get your case information from www.Pacer.gov. Otherwise, you will need to get the information from the federal courthouse where you were convicted. You will be charged a fee to access your case information.

What if I previously sealed the conviction for which I am requesting a Certificate?

- Sealing a conviction restricts the court from accessing the sealed case. If you previously sealed a conviction and you wish to request a *Certificate* for the sealed conviction, then you may need to file a motion with your request for a *Certificate* in order for the court to consider your request. The motion may be called a "Motion to Unseal and Reseal case" or "Motion to Access Court File." This motion will not make your conviction public. Contact the Circuit Clerk for more information on filing such a Motion. You may be charged a fee for filing this motion.

STEP 2: FILL OUT THE REQUEST FOR CERTIFICATE OF GOOD CONDUCT

Certificate Form Line-By-Line Instructions:

SECTION 2: This statement must be true. You cannot get a Certificate if you have been convicted of arson, aggravated arson, kidnapping, aggravated kidnapping, aggravated driving under the influence of alcohol or drugs, or aggravated domestic battery.

Also, you cannot get a Certificate if you have to register under the Sex Offender Registration Act, the Arsonist Registration Act, or the Murder and Violent Offender Against Youth Registration Act. You can find more information on these acts here:

- [www.ilga.gov/legislation/ilcs/ilcs3.asp?ActID=2009](http://www.ilga.gov/legislation/ilcs/ilcs3.asp?ActID=2009;);
- <http://www.ilga.gov/legislation/ilcs/ilcs3.asp?ActID=2621&ChapterID=55>; and
- <http://www.ilga.gov/legislation/ilcs/ilcs3.asp?ActID=2802>.

SECTION 3: Enter the date when your last sentence ended. Your sentence ends on the date of the payment of any fine imposed, or on the date of release from custody by parole, mandatory supervised release, or commutation or termination of sentence. [730 ILCS 5/5-5.5-30\(c\)](#)

SECTION 4: To find out if a conviction is a felony or misdemeanor, look at your RAP sheet or court dispositions for the "Class." There will be either an "F" for felony or "M" for misdemeanor listed. In most counties outside of Cook, felony offenses have a "CF" in the case number and misdemeanors have a "CM" in the number. Sample RAP Sheet with class of criminal charge:

Court Charges/Disposition			
Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM
Disposition: COURT SUPERVISION		Disposition Date: 12/17/2010	
Case Number: 09CM117			

SECTION 5: Typically, people request Certificates for convictions that are not eligible for expungement or sealing or are causing an employment barrier.

☒ **Line 5a:** In **5a**, check the box if you are seeking a Certificate for the first time and enter the case numbers of the convictions you are seeking a Certificate for. Include federal and out of state convictions if there is a specific legal barrier preventing you from getting a job.

☒ **Line 5b:** In **5b**, check the box only if you were previously granted a *Certificate of Good Conduct* and need to remove an additional employment barrier or cover additional convictions (including any federal and out of state convictions). Enter the date of your previous Certificate and list the convictions. Attach your previously granted *Order for Request for Certificate of Good Conduct* to this *Request*.

SECTION 6:

☒ **Line 6a:** In **6a**, check the box if you have **3 or fewer arrests** on your criminal record. State that you should receive a *Certificate of Good Conduct* because you do not have many offenses on your criminal record. Attach a local police RAP Sheet, certified court dispositions or an Illinois State Police Statewide Criminal History Transcript, if possible.

☒ **Line 6b:** In **6b**, check the box if you have **4 or more arrests** on your background. This is your opportunity to explain to the court that despite your criminal history, you are a different person than you were when the offenses were committed. Attach a local police RAP Sheet, certified court dispositions or an Illinois State Police Statewide Criminal History Transcript, if possible.

☒ **Line 6c:** In **6c**, check the box if you have earned any educational/vocational degrees or certifications, or if you have made progress towards a degree or certification. State the degrees/certifications you have earned, and when you earned them. If you are currently in school or wish to continue with your schooling, state what school/program you are enrolled in or plan to continue, how long you have been enrolled in the school/program, and how close you are to getting your degree or certification. Attach a copy of any school degrees, certifications or school transcripts, if possible.

☒ **Line 6d:** In **6d**, check the box if you are currently employed or have been regularly employed in the recent past. State your recent work history and if you have been denied employment due to your convictions. Attach a copy of a current resume. You can also attach letters from current or previous employers regarding your work history. The longer the employment history you list, the better. Attach any letters from employers or potential employers stating that you cannot be employed due to your conviction.

☒ **Line 6e:** In **6e**, check the box if you have recovered or are currently recovering from substance abuse. State

how you got sober and how long you have been sober. Examples of treatment include medication, therapy, or group/sponsor meetings. If you quit 'cold turkey,' without any treatment, state how you are able to stay sober. Attach a copy of a letter from a treatment facility, Alcoholics' Anonymous/Narcotics Anonymous sponsor, house of worship or a doctor that shows the treatment you received, if possible.

☒ **Line 6f:** In **6f**, check the box if you have received treatment for a mental health issue that contributed to your criminal history. State how you are being treated, and how long you have been receiving treatment. Examples of treatment include medication, therapy, or group meetings. Attach a letter from a treatment facility or doctor confirming mental health treatment, if possible. Do not attach copies of actual medical records.

WARNING: This *Request* will become a public record and other people may read what you write on or attach to this *Request*. Do not attach any actual medical records. If you attach a letter about your diagnosis and/or treatment, you may be waiving your right to keep your mental health records confidential.

☒ **Line 6g:** In **6g**, check this box if your family depends on you for support: financial, emotional, or otherwise. State who you support (partner, spouse, children, mother, father, siblings, cousins, etc.). Attach letters from family members to show that they depend on you for support.

☒ **Line 6h:** In **6h**, check this box if you work to improve your neighborhood or community. State the kind of volunteering you do, and how long you have been volunteering. Examples include volunteering for a neighborhood organization, school, charity, or religious organization. Attach letters from neighbors, religious community, volunteer organizations, etc. that show your community involvement.

☒ **Line 6i:** In **6i**, check this box if there are any other reasons that show your rehabilitation that you have not already stated. Attach any documents that support these reasons.

SECTION 7:

☒ **Line 7a:** In **7a**, check this box and write in the blank space the number of years since the end of your last sentence. Start counting from the day you completed your last sentence. Your sentence ends on the date of the payment of any fine imposed, or on the date of release from custody by parole, mandatory supervised release, or commutation or termination of sentence. [730 ILCS 5/5-5.5-30\(c\)](#). This includes sentences for federal crimes or crimes in other states.

☒ **Line 7b:** In **7b**, check this box if you or your family receive any government benefits. Examples include WIC, SNAP, TANF, Medicaid, public housing, Section 8 Voucher housing. Explain how granting your *Request*

for *Certificate of Good Conduct* could allow you to get better employment and reduce or eliminate you or your family's dependence on these programs.

☒ **Line 7c:** In **7c**, explain, in your own words, what happened for each offense. This explanation can include where you were when you were arrested, who you were with, why the offense happened/motivating factors (for example, addiction, financial need, opportunity, youth, mental illness, bad friends, or family influence, etc.) and lessons learned. When possible, accept responsibility for the conviction and explain why it will not happen again. If any violations of the sentence occurred, explain why. If you have numerous convictions or it is difficult to remember the facts about your conviction, explain that to the court. Explain to the court what you learned from your convictions as well.

☒ **Line 7d:** In **7d**, explain why you will continue to be law-abiding despite your criminal background. Using the reasons you listed in Section 6, explain how you have changed since receiving your convictions.

SECTION 8: Check this box if you are seeking a *Certificate of Good Conduct* for employment or licensing purposes.

☒ **Line 8a:** In **8a**, check this box if there are jobs or licenses you cannot get because of your criminal record and list the jobs you have been denied.

- For example: "I am applying for a *Certificate of Good Conduct* because I want to work at a warehouse."

☒ **Line 8b:** In **8b**, check this box if there are legal employment barriers preventing you from working. You should list the name of the act and the statutory citation of the legal employment barrier.

- For example: "I am applying for a *Certificate of Good Conduct* because I want to work in the public schools and cannot because of a barrier in the Illinois School Code 105 ILCS 5/1-1."
- Go to this website for a list of barriers to employment in Illinois: <https://niccc.csgjusticecenter.org/>

SECTION 9: Check this box if you are seeking a *Certificate of Good Conduct* for housing purposes. If you have been denied housing due to your criminal record, it is important for the court to know specific examples where you have been denied housing. Helpful information can include the approximate date of denial, location/name of building, and how it affected you.

- For instance, "In April 2020, I applied for housing with Meadow Oak Apartments in Chicago, and the manager told me they could not allow me to live there due to my criminal record. This apartment was in a good neighborhood and was affordable for my family, but we were forced to move into my sister's home instead."
- Attach any documentation of your housing denial, which can include: a letter from the landlord or

management company that denied you housing and the background check that showed your conviction.

What type of documents should I include to support my Request for Certificate of Good Conduct?

When you file your *Request*, the only thing the judge knows about you is your criminal history. It is important to include documents with other information about yourself, which you can attach to your *Request*.

Examples include:

- Your criminal history (exhibit could be RAP sheet or case dispositions, etc.)
- Your educational progress (exhibits could be transcript, degrees, letters from teachers/professors, etc.)
- Your work history (exhibits could be resume, letter from current, former, or potential employer, etc.)
- If drug dependency was an issue, your treatment progress (exhibit could be 12-step program, treatment completion, letter from sponsor, counselor, etc.)
- If mental health was an issue, your treatment progress (exhibit could be letter from therapist, background on seeking treatment, etc.)
- Your family situation (exhibits could be letter from family, who you are supporting, who you are helping in their family, etc.)
- Your community involvement (exhibits could be letters from volunteer groups, certificates of appreciation, etc.)
- Anything else that is relevant to support your claim of rehabilitation.

What type of letters should I include?

It is important for the judge to be able to consider the opinions of people who know you. Asking people to write letters on your behalf is one way for the judge to do this. There are several different types of letters you can attach to your *Request*.

General Character Letter

- A general character letter should include: 1) how the writer knows you; 2) how long they have known you; 3) if they are aware of your criminal record; 4) what they have to say about your good character (for example, honest, peaceful, kind, trustworthy, hardworking, etc.); and 5) examples that show your good character. If the writer is a family member you are supporting, make sure they include that fact in the letter.

Potential Employer Letter:

- Include letters from employers if they say you will not be offered a job because of your criminal record.

Addiction or Mental Health Treatment Letter:

- Letters to demonstrate treatment by a doctor, therapist, counselor, or treatment center could include: 1) an official diagnosis of your condition; 2) dates of current or past treatment; 3) whether you received inpatient or outpatient treatment; 4) if you

take medication as part of your treatment; and 5) any other information that may be relevant to your treatment.

NOTE: this letter will be available to the public and filing it with the court may waive your right to confidentiality of your mental health records.

- If you go to Alcoholics or Narcotics Anonymous or similar group meetings, try to get a letter from a sponsor or group leader. Ask them to include in the letter: 1) how long you have been going to meetings; 2) how often you attend meetings; and 3) the progress that you have made in your recovery.

Current or Former Employer Letter:

- Letters verifying your employment should include: 1) how long you worked there; 2) your job title and any promotions earned; 3) why you are a good employee; and if true, 4) whether a *Certificate of Good Conduct* can help you earn a promotion, more hours or full-time employment.
- **SECTION 8:** Check this box if you are seeking a *Certificate of Good Conduct* for employment or licensing purposes.

NOTE: If possible, all letters should be typed on a computer, printed, and signed by the writer.

How do I fill out the *Certificate of Good Conduct* form?

- Enter your information on this form where instructed.
- Enter the date you filed your Request.
- You will not check any boxes or fill out any further information on the form. The judge will check the correct boxes once a decision has been made about your Request.
- You will get this form back from the court if the court approved your *Certificate of Good Conduct*.

How do I fill out the *Order Denying Request for Certificate of Good Conduct* form?

- Enter your information on this form where instructed.
- Enter the date you filed your Request.
- You will not check any boxes or fill out any further information on the form. The judge will check the correct boxes once a decision has been made about your Request.
- You will get this form back from the court if the court denied your *Certificate of Good Conduct*.

STEP 3: NEXT STEPS

What do I do after I fill out my forms?

Step 1- File your Request for Certificate of Good Conduct with the Circuit Clerk in the county where you were convicted.

- You may be able to file in person, by mail, or by e-filing (filing electronically). Check with your Circuit

Clerk to see how to file in your county.

illinoiscourts.gov/courts/circuit-court/circuit-court-clerks/.

- There may be a fee to file your *Request for Certificate of Good Conduct*. The Circuit Clerk can let you know the amount of the fee. Ask the Circuit Clerk and ask how much it will cost to file your forms and the types of payment (cash, check, credit, online) they take.
- If you cannot afford to pay the filing fee, you can ask the court to pay for free or at a reduced cost by filing an *Application for Waiver of Court Fees* which you can find at: illinoiscourts.gov/documents-and-forms/approved-forms/.

How to File in Person

- Go to the courthouse in the county where your court case should be filed.
- Bring 4 copies of the *Notice of Court Date*, the *Request for Certificate of Good Conduct*, and all documents you have attached to your *Request* with you to the Circuit Clerk's office.
- Give the Circuit Clerk your original form and the copies to stamp.
- The Circuit Clerk will stamp your forms keep the original forms and give back your copies. This stamp is your proof that the forms were filed with the court.
- Pay the filing fee or file your *Application for Waiver of Court Fees*.

How to File by Mail

- If you are asking to file for free or at a reduced cost, there may be local rules requiring you to file your *Application for Waiver of Court Fees* and your *Request for Certificate of Good Conduct* in person. Ask the Circuit Clerk if you need to file in person.
- In Cook County, you must go in person to have your fees waived.
- If you do not need to appear in person, mail your original form including your *Request for Certificate of Good Conduct* and one copy to the Circuit Clerk to stamp.
- If you do not need to have your fees waived, mail in 4 copies of the *Notice of Court Date*, the *Request for Certificate of Good Conduct*, all documents you have attached to your *Request* to the Circuit Clerk's office, and the correct fee.
- Include a self-addressed and stamped envelope for the Circuit Clerk to mail the file stamped copy to you.

How to electronically file (E-file)

- In counties that accept e-filing for criminal matters (you can go to efile.illinoiscourts.gov/active-courts.htm to see if your court accepts criminal e-filings) you may electronically file (e-file) the *Request for Certificate of Good Conduct* with the trial court.
- To e-file, create an account with an e-filing service provider.

- Visit efile.illinoiscourts.gov/service-providers.htm to select a service provider. Some service providers are free while others charge a processing fee. For instructions on how to e-file for free with Odyssey eFileIL, see the self-help user guides here: illinoiscourts.gov/self-help/how-to-e-file/
- If you do not have access to a computer or if you need help e-filing, take your form to the Circuit Clerk's office where you can use a public computer terminal to e-file your forms.
 - You can bring your forms on paper or saved on a flash drive.
 - The terminal will have a scanner and computer that you can use to e-file your form.
- If your court requires that all *Request for Certificate of Good Conduct* be e-filed, you are exempt from e-filing if (1) you are an inmate in a prison or jail and you do not have a lawyer, (2) you have a disability that keeps you from e-filing, or (3) you qualify for an exemption from e-filing.
 - You will qualify for an exemption if: (1) you do not have internet or computer access at home and it would be difficult for you to travel to a place where you could use a computer; (2) you have trouble reading or speaking in English, or (3) you tried to e-file your documents, but you were unable to complete the process because the equipment or assistance you need is not available.
 - If you qualify for an exemption, fill out a *Certification for Exemption from E-Filing* found here: illinoiscourts.gov/documents-and-forms/approved-forms.
 - File the original and 4 copies of your forms and the *Certification* with the trial court clerk's office in person or by mail.

Step 2: Ask for a court date.

- Ask the Circuit Clerk if you have to schedule a court date or if one will be scheduled automatically.
- If you need to schedule the court date, ask the Circuit Clerk how to do so. The Circuit Clerk may schedule the court date or you may have to speak with other court staff.
- When you get your court date, ask if the court will send notice of the court date to the other party or if you need to.
- If you need to send notice, complete the *Notice of Court Date for Request for Certificate of Good Conduct*.

Step 3: Send a copy of your *Request for Certificate of Good Conduct* to the State's Attorney.

- After filing and after you receive a court date, you must complete and send a copy of your *Notice of Court Date for Request for Certificate of Good Conduct* along with the forms you filed with the

Circuit Clerk to the State's Attorney. There are instructions on the *Notice* explaining how to complete the form.

- If you and the person you're sending the (*form*) to have an email address, you must send it by email or by notification through the e-filing system. If you or the person you're sending the (*form*) to does not have an email address, you may give it to the other parties by personal hand delivery, mail, or third-party commercial carrier (for example, FedEx or UPS).
- You may e-mail your form to a party if they have listed their e-mail address on a court document. Complete the *Proof of Delivery* with information to show how you sent the forms to each party. The form has room for 3 parties. If you are sending forms to more than 3 parties, fill out and file one or more *Additional Proof of Delivery* forms with your form.

Step 4: Mail a copy of your *Request for Certificate of Good Conduct* to the judge.

- Ask the Circuit Clerk which judge is going to hear your case and mail them a copy of your *Request*. Address your envelope to the judge at the courthouse address.
- Giving the judge a copy will give them an opportunity to review your *Request* ahead of your court date and resume, degrees or certificates, letters from teachers or past employers).
- Gather and make copies of pictures and documents you want the judge to see. Bring the original for the judge and one copy for you and each of the people in the case. If your court date is by phone or video, contact the Circuit Clerk and ask how you can get a copy of these items to the judge. You might have to e-file them like your other documents. You will also have to get a copy of these items to the other parties.
- If you want the judge to hear from other people, those people will have to attend court and be witnesses (in most cases, you cannot bring in written statements of witnesses). If your court date is by phone or video, you will have to arrange for your witnesses to attend by phone or video.

Step 5: Get ready for your court date.

- Review your *Request* filed with the court. Remember that you have sworn that everything in this document is true. Be familiar with your criminal record and any documents you attached to your *Request* so you can talk about your background and how you have been rehabilitated. If there are documents that you did not attach to your *Request* that you want the judge to look at, bring copies with you.
- A character witness can testify to your rehabilitation. This can be a family member, friend, co-worker, or community member.
- Prepare questions for witnesses, if any. Questions can include the following:
 - Who is the person?

- How they know you and for how long?
- How they have seen changes in you since your conviction?
- How the judge can be convinced you are rehabilitated?

- Tell the judge what you do in your community (volunteer, part of your family, include letters from family, church or other organizations).
- If you want the Certificate because of a specific employment barrier, explain how you are qualified for the job but cannot get it because of your convictions (for example, you have training or have

Step 6: Go to your court date.

- You should have received a court date and time from the Circuit Clerk when you filed your court forms OR on a written notice from the Circuit Clerk. If you cannot find your court date and time, call the Circuit Clerk.
 - If your court date is by phone or video:
 - Make sure to have the call-in or login information for your court date and make sure your technology is working.
 - Follow the instructions on the court notice you received. Call the Circuit Clerk or Circuit Court or visit their websites for specific technology instructions.
 - Follow these recommendations to appear by phone or video: illinoiscourts.gov/self-help/court-by-phone-or-video/.
- Bring these items with you to court:
 - A photo I.D.;
 - Copies of all the documents you filed with the Circuit Clerk;
 - Any documents you did not include in your *Request* that you want the judge to look at; AND
 - A copy of the *Order*.
- Get to the courthouse at least 30 minutes early.
- Go to the courtroom number listed on your court form. If your forms do not have a courtroom number look for a list of cases at the courthouse or ask the Circuit Clerk.
- Check in with the courtroom staff and wait for your name and case number to be called.
- When your case is called, walk to the judge and introduce yourself. If you are attending by phone or video, remember to unmute yourself.

Step 7: How do I present my case to the judge?

- Tell the judge your side of the case and answer questions.
- Focus on the 3 or 4 strongest arguments in your favor. The judge will have read your *Request* so you do not need to repeat everything in it.
- Even though the judge may ask you about your convictions, the judge is not deciding whether you should have been convicted.

Make sure you know how you are to attend your court date.

Your court date could be in person, by phone or by video. If it is by phone or video it is called a "Remote Appearance." Call the Circuit Clerk or visit their website for more information. To find the phone number for your Circuit Clerk, visit illinoiscourts.gov/courts/circuit-court/circuit-court-clerks/.

worked in that field). If you have already been denied a job because of your record, tell the judge.

- Give copies of any documents you brought to court that are not attached to your *Request* to the judge and the State's Attorney. Be prepared to explain why a document is important.
- If you have any character witnesses, bring them to court.
- Tell the judge the name of your character witnesses.
- The judge may allow the character witness to give a presentation or may require you to ask the witness questions. Ask the questions you prepared in advance.
- The judge and the State's Attorney may also ask questions of your witnesses.
- When you are finished, the State's Attorney will be given an opportunity to speak. Listen politely and do not interrupt.
- The judge will decide whether the documents, witness testimony, and other evidence can be considered in making a decision about your case.

Step 8: The judge makes a decision after both sides present their case.

- The judge will then issue a ruling on your *Request*. The *Request* will either be "granted" or "denied."
- If the *Request* is "granted," that means the court will issue the *Certificate of Good Conduct*. If the *Request* is "denied," that means the court will not issue a *Certificate of Good Conduct*.

Step 9: What do I do if my Certificate is granted?

- The Court will enter a written order. This order is your *Certificate of Good Conduct*. No separate certificate will be issued. **NOTE:** Be sure to ask for a copy of the Certificate and do not leave the courthouse without it.
- Get a certified copy of your Certificate.
 - The court clerk should provide you with a copy of your Certificate shortly after the judge's decision. Go to the Circuit Clerk's office and have them certify, either by stamp or raised seal, the Certificate (a small fee may apply).
- Make sure that the Illinois State Police receive a copy of your Certificate.

- The Circuit Clerk's office will send a copy of your Certificate to the Illinois State Police for verification purposes. Thirty days after the judge signed your Certificate, you can call the Illinois State Police at (815) 740-5160 to confirm they received the Certificate.
- Keep a copy of your Certificate.
 - If an employment background check asks if you have earned a *Certificate of Good Conduct*, you can answer "yes." Your employer may be legally required to retain a copy of your Certificate, so be prepared to present the Certificate when asked to do so.
 - If you apply for a job and a background check discloses a conviction for which you have received a *Certificate of Good Conduct*, give the employer a copy of your Certificate.

Step 10: What do I do if my Certificate is denied?

- Ask the judge to reconsider.
 - You can file a Motion to Reconsider the denial. You have 30 days from the day the order denying your *Request* is signed to file the Motion. If you file a Motion to Reconsider, you must explain how the denial was wrong

because the judge made a mistake in applying the law to your evidence or used the wrong law to decide your case.

- Preserve your right to request a Certificate in the future.
 - If the judge denies your *Request*, ask the judge to do so "without prejudice." If the judge does this, you can make a request for a Certificate in the future. For example, if the judge denies your request because it has not been long enough since the end of your sentence or the judge was not convinced you have been rehabilitated, you could file again when enough time has passed since your last sentence or when you have more evidence of rehabilitation.
 - You have the right to appeal the denial of your *Request*. Because judges have a lot of discretion to grant or deny a Certificate of Good Conduct, it is unlikely that an appeal would be successful.

Appendix: Case Worksheet

Use this worksheet to get the information from your entire criminal record in one place.

- You can find all the information you need to fill in the worksheet on your court dispositions, RAP sheets, and information from the Illinois State Police Access and Review process. Below are some samples to help you locate the information you need.
- There are three tables on page 10 of this instruction booklet to help you determine if a sentence or disposition qualifies as a conviction for the purposes of a *Certificate of Good Conduct*.

How do I complete the Case Worksheet?

Using the information on your court dispositions and any RAP sheets you have, fill in your Case Worksheet with this information for each case:

- Arrest or Case Number: Enter the arrest or case number listed on your court disposition or RAP sheet.

- Arresting Agency: Enter the name of the police department that arrested you.
- Charge: Enter all offenses you were charged with for each case number, for example “drug possession” and “possession of paraphernalia.”
- Date of Arrest: Enter the date you were arrested that is listed on your court disposition or RAP sheet.
- Outcome: enter the sentence you received for the offense.
- Completion of Sentence: Enter the date your sentence ended successfully.

What if I see an arrest on my criminal record but there is no charge, disposition or sentence listed?

Not all arrests lead to charges, so there would not be a charge, disposition, or sentence listed on your record. All arrests without charges can be expunged if all the offenses on your entire record qualify. If not, then the arrests can be sealed. In the chart below, you only need to enter the Arresting Agency and Date of Arrest for arrests that did not result in charges.

	Arrest or Case Number	Arresting Agency	Charge	Date of Arrest	Outcome	Completion of Sentence (Date)
1						
2						
3						
4						
5						
6						
7						
8						
9						
10						
11						
12						
13						
14						

Do not file this worksheet with the court. It is only for helping you fill out the actual forms.

Sample Cook County Court Disposition:

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
PEOPLE OF THE STATE OF ILLINOIS
VS
JOHN DOE
CERTIFIED STATEMENT OF CONVICTION / DISPOSITION
I, DOROTHY BROWN, Clerk of the Circuit Court of Cook County, Illinois, and keeper of the records and seal thereof do hereby certify that the electronic records of the Circuit Court of Cook County show:
The State's Attorney of Cook County/Local Prosecutor has filed a complaint with the Clerk of the Circuit Court.
Charging the above named defendant with:
750-5/12-3-A-1 M A BATTERY
The following disposition(s) was/were rendered before the Honorable Judge(s):
11/05/2005 BOND SET BY RULE OF COURT 11/17/2005 3154 Smith, Gerald T.
11/17/2005 BOND FORFEITURE B001 Smith, Gerald T.
12/13/2005 MOTION TO VACATE BOND FORF. Smith, Gerald T.
12/13/2005 BOND FORFEITURE VACATED Smith, Gerald T.
12/13/2005 STRICKEN OFF - LEAVE REINSTATE C001 Smith, Gerald T.

Sample Chicago Police RAP Sheet:

CHICAGO POLICE DEPARTMENT
3510 S. Michigan Avenue/Chicago, IL 60653
Identification Section
Criminal History Report
DOE, JOHN
IR # 978380
SID #
FBI #
IDOC #
Current Arrest Information:
Date of Birth: 2-OCT-1974
Age: 39 years
Place of Birth: CHICAGO, IL
SSN:
Driver's License #: Q4838171920282782
Driver's Lic. State: ILLINOIS
Scars, Marks & Tattoos:
Criminal Justice Summary: Total arrests: 1 (1 Misdemeanor)
ARREST
Arrest Name: DOE, JOHN Date: 11/4/2005 Holding Facility: NORRIDGE
Date of Birth: 2-OCT-1974 Arrest Address: 145 W. State St., Chicago, IL
DCN or CB: 05456347 Residence: 230 E. Green St., Chicago, IL
Officer: JONES Officer Badge #: 53 Arresting Agency: CPD
Count Class Type Statute Arrest Charge Description
[1] A M 720 ILCS 5/12-3 Battery
COURT CHARGES/ DISPOSITION
Statute Charge Class Case#
720 ILCS 5/12-3 BATTERY M 05121978901
Disposition: SOL Disposition Date: 13-DEC-2005
Sentence: Sentence Date:

Sample Case Worksheet:

	Arrest or Case Number	Arresting Agency	Charge	Date of Arrest	Outcome	Completion of Sentence (Date)
1	05121978901	Chicago Police Department	Battery	11/4/2005	Stricken off with leave to reinstate	n/a

Sample County Court Disposition (Not Cook County):

Sample Illinois State Police RAP Sheet:

IN THE CIRCUIT COURT OF THE ELEVENTH JUDICIAL CIRCUIT
FORD COUNTY, ILLINOIS

PEOPLE OF THE STATE OF ILLINOIS,)
Plaintiff,)
vs) No. **09-CM-117**
Jane Doe)
Defendant)

JUDGMENT AND SENTENCE
OF PROBATION/COURT SUPERVISION/CONDITIONAL DISCHARGE

The case coming on for sentencing, Defendant (having pled guilty of) ~~(having been found guilty of) (having had probation, supervision, or conditional discharge received for)~~ the offense(s) of:
Unlawful Possession of Drug Paraphernalia
Class A Misdemeanor

and a Presentence Report having been ~~(prepared)~~ (waived) and hearing in aggravation and mitigation ~~(held)~~ (waived); The Court finds there is a factual basis for a finding of guilty. The Court further finds that imprisonment in the Illinois Department of Corrections is not necessary for the protection of the public, and the following sentence does not deprecate the seriousness of the Defendant's conduct and is consistent with the ends of justice.

ACCORDINGLY IT IS THE ORDER OF THIS COURT, that the Defendant is placed on (probation) ~~(court supervision) (conditional discharge)~~ for a period of 12 (years) (months) (days) subject to the following conditions:

THE DEFENDANT SHALL:

95 (X) 1. not violate any criminal statute of any jurisdiction;
...
95 (X) 8. pay a fine of \$ 750 ; court costs of . . .
and Probation (Supervision) fees in the amount of
\$ 25 per month;

... This case is continued to 12/17/10 except for review or remission hearings.

ENTER: 12/17 , 20 09 Gerald T. Smith
JUDGE

TERMINATION DATE: 12/17 , 20 10

ILLINOIS STATE POLICE
Bureau of Identification
260 North Chicago Street
Joliet, IL 60432-4075

Criminal History Of: Doe, Jane State Identification #: IL 9876543
(Last Known Name)

Conviction Status: MISDEMEANOR CONVICTION
Custodial Status:

Alias Name(s) DOE, JANE **Date of Birth** 01/13/1981

SUBJECT IDENTIFICATION DATA

Sex: FEMALE
Race: WHITE
Height: 5'4" **Date Reported:** 10/23/2009 **FBI#:**
Weight: 105 **Date Reported:** 10/23/2009 **Chicago IR#:**
Eyes: BLUE
Hair: BLACK
Skin: MEDIUM

Scars/Marks/Tattoos TAT L LEG **Place of Birth** ILLINOIS **Driver's License #** K1234567899 **DL State** IL

CRIMINAL HISTORY DATA

Arrest

DCN: P129393 **Date of Arrest:** 10/23/2009
Name: DOE, JANE **Date of Birth:** 01/13/1981
Residence: 123 N. Main St. Melvin, IL

Arresting Agency: **FORD COUNTY SHERIFF'S OFFICE**
Agency Case Number: 1234567 **Officer Badge Number:** 008

Arrest Charges

Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM

State's Attorney Section

Filing Decision: FILED **Decision Date:** 10/23/2009

Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM

Agency Name: FORD COUNTY STATE'S ATTORNEY

Court Charges/Disposition

Count	Statute Citation	Literal Description	Class
1	720 ILCS 600/3.5	Poss. Of Drug Paraphernalia	CM

Disposition: **PROBATION** **Disposition Date:** 12/17/2010

Case Number: 09CM117
Agency Name: FORD COUNTY CIRCUIT COURT

Sample Case Worksheet:

	Arrest or Case Number	Arresting Agency	Charge	Date of Arrest	Outcome	Completion of Sentence (Date)
1	09-CM-117	Ford County Sheriff's Office	Unlawful Possession of Drug Paraphernalia	10/23/2009	Probation	12/17/2010

How do I know if I was “convicted” of an offense?

The disposition (outcome) of the offense on your record tells you if you were convicted or not. The tables below explain what the disposition codes or descriptions on your record mean and if you were convicted or not.

- If you see the disposition for your offense on Table 1 below, you were not convicted for that offense.

- If you see the disposition for your offense on Table 2 below, you were convicted of that offense but you have an exception.
- If you see the disposition for your offense listed on Table 3 below, you were convicted of that offense.

Look at all of the entries in the “Outcome” column of your Case Worksheet. Are there any convictions on your record?

Table 1: These dispositions/outcomes mean that you were NOT convicted:

Code	Disposition	More Information
FNPC	Finding of No Probable Cause	The court dismissed the case because it decided that there was no probable cause (reason) to believe that you had committed the offense that you were accused of.
FNG	Found Not Guilty	The court decided you were not guilty of the offense you were charged with.
RWOC	Released without Charging	You were arrested but not charged with an offense or brought to court.
	<i>Nolle prosequi</i>	The state stopped prosecuting your case and the court dismissed the case.
	Non-suit	In an Ordinance Violation case, the local municipal attorney has the option to bring the case back up again. If they do not, the case is considered dismissed.
SOL	Stricken off with leave to reinstate	The State has the option to bring the case back up again. If they do not within 120 – 160 days, the case is considered dismissed.
	Court supervision, completed successfully	The court kept your case open for a set period of time, and because you followed all of the conditions during that time, the court dismissed the criminal charges against you.
	Successfully completed First Offender Drug Probation or Qualified Probation	This type of probation can also be called 410, 710, 1410, or TASC probation when the court determines the arrest was a result of alcohol or drug addiction, and must be reflected in the record. You can tell if you received this special type of probation by the court disposition.

Table 2: These dispositions/outcomes mean that you were convicted, but there is a special situation:

Disposition/Sentence	More Information
Guilty/Conviction Reversed or Vacated	The court originally decided you were guilty of an offense, but then reviewed your case and decided you were not guilty, or the court cancelled the original finding of guilt.
Guilty/Conviction with a Pardon from the Governor	The court found you guilty of an offense, but the Governor granted you a pardon that allows the expungement of your criminal record.
Guilty/Conviction with a Certificate of Eligibility for Expungement from the Prisoner Review Board	You petitioned the Prisoner Review Board and were given eligibility to erase a conviction from your criminal record.

Table 3: These dispositions/outcomes mean that you were convicted:

Disposition/Sentence	More Information
Time Considered Served	The court determined that you committed the offense. The time you spent in jail waiting for the court to hear your case was considered your sentence.
IDOC (Illinois Department of Corrections) or County Department of Corrections (jail)	The court determined you committed the offense. You were sentenced to time in jail or prison.
Conditional Discharge	The court determined you committed the offense. You were sentenced to meet certain conditions and if you did not you would be resentenced.
Probation (not Qualified Probation)	The court determined you committed the offense. You were sentenced to report to a Probation Officer.
Fine (without court supervision)	The court determined you committed the offense. You were sentenced to pay a fine.